

Mandate After Rehearing Denial

Rule 41 date

The clerk issues this mandate on November 14, 2025. The panel denied A.R.M.'s timely rehearing petition on November 7. Rule 41(b) makes the mandate due seven days after entry of that denial when the date is later than the original schedule. November 14 is seven calendar days after November 7. Neither date requires a weekend or holiday adjustment, and the docket contains no timely stay motion or order setting another date.

The clerk has verified the September 9 opinion and judgment, October 24 rehearing petition, November 7 denial, and absence of a later qualifying filing. The petition's timely filing displaced October 31 as the operative date; denial, not the original expiration of the rehearing period, supplies the later event. This calculation records the basis for issuance without treating the denied petition as withdrawn or never filed.

Mandate After Rehearing Denial

Opinion and judgment issued

The September 9 opinion and seven-component judgment are issued as mandate on November 14, 2025. The judgment approves restoration of unchanged P-7 while excluding the later proffer from the agency record. It sets aside the agency's aggregate-risk, acquiescence, and meaningful-consideration rulings for further proceedings, rejects the challenge to the actual petition's timing, and grants the petition only to the extent the opinion specifies.

The mandate does not incorporate a new factual finding or modify the remand because rehearing was denied. The agency may proceed consistently with the unchanged opinion. The clerk shall serve the mandate on both parties and retain the rehearing petition and denial as the events explaining the later issuance date.